

Significance — Cross-Case Propositions

What each judgment adds to the Section 135 jurisprudence, grouped by theme

Every “significance” takeaway from Cases 001–050, clustered by the proposition it illustrates so recurring themes and outliers are visible side by side. Each point is tagged with its source case.

THE REVERSE-ONUS PRESUMPTION (THIRD PROVISO)

- 001 Gaffar Miya** **The reverse-onus presumption does real work.** Once an unauthorised means of abstraction is proved, the 'shall presume' clause compels a presumption of dishonest theft; the consumer must rebut with evidence of a lawful metered source — typically paid bills under the Section 106 onus (Mukesh Rastogi); a bare denial with no defence evidence will not suffice.
- 002 Sattar Miya** **The reverse-onus presumption does real work.** Once an unauthorised means of abstraction is proved, the 'shall presume' clause compels a presumption of dishonest theft; rebuttal requires evidence of a lawful metered source — typically paid bills under the Section 106 onus (Mukesh Rastogi).
- 003 Gaffar Miya** **The reverse-onus presumption does real work.** Once an unauthorised means of abstraction is proved, the 'shall presume' clause compels a presumption of dishonest theft; rebuttal requires evidence of a lawful metered source — typically paid bills under the Section 106 onus (Mukesh Rastogi).
- 005 Mohd. Riyaz & Anr.** **The reverse-onus presumption binds both accused.** Once the unauthorised means is proved, only evidence of lawful metered use (paid bills; s.106 onus, Mukesh Rastogi) rebuts the presumption — for user and registered consumer alike.
- 007 Devi Prasan** **Proviso III and Section 106 IEA operate in tandem.** The statutory presumption plus the especial-knowledge burden require the occupant to explain the source running his appliances — silence or bald denial convicts.
- 010 Tilak Raj** **No settlement, no rebuttal — presumption at full force.** Bill unpaid and no defence evidence; conviction rests squarely on the unrebutted presumption.
- 011 Altaf** **The unmetered-premises template held.** No meter, distribution-box tap, unexplained load, no Genset, no paid bills — the compulsory presumption did the rest.
- 012 Shehzad & Anr.** **The reverse-onus presumption binds every occupant.** Neither spouse produced paid bills or lawful-source evidence; the compulsory presumption convicted both.
- 013 Gyatri Devi** **The reverse-onus presumption did the rest.** No meter, unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.
- 014 Mustak Hussain** **The reverse-onus presumption did the rest.** No meter, unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.
- 016 Shimla** **The reverse-onus presumption did the rest.** No meter, unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.
- 017 Atul** **The reverse-onus presumption did the rest.** No meter, unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.

018 Imran **The reverse-onus presumption did the rest.** No meter, unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.

019 Devanand **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful metered use — paid bills (s.106; Mukesh Rastogi) — failing which the compulsory presumption convicts.

020 Bobby Khurana **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful, metered use — paid bills under the Section 106 onus (Mukesh Rastogi) — failing which the compulsory presumption convicts.

021 Archana Shukla **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful metered use — paid bills (s.106; Mukesh Rastogi) — failing which the compulsory presumption convicts.

022 Tilak Raj **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful, metered use — paid bills under the Section 106 onus (Mukesh Rastogi) — failing which the compulsory presumption convicts.

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025 Devanand **The reverse-onus presumption binds the owner-abettor.** Once the unauthorised means is proved, the owner must show lawful, metered use — paid bills under the Section 106 onus (Mukesh Rastogi) — failing which the compulsory presumption convicts.

026 Vinod Kumar **The presumption never arose.** Without the foundational nexus, the third-proviso presumption did not engage, and the ordinary burden defeated the prosecution.

027 Smt. Rakhi **Section 106 cannot plug a hole in the prosecution's own case.** The onus to prove residence/consumption stays with the prosecution (Shambhu Nath Mehra; Satye Singh).

028 Shehzad **The reverse-onus presumption did the rest.** No meter reading, an unexplained tapped load, no paid bills — the compulsory presumption convicted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi).

030 Neelam **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).

031 Sukh Chain **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).

032 Aamer Suhail **The presumption never engaged.** With the foundational facts unproved, the reverse-onus presumption did not arise.

- 033 Saroj Devi** **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).
- 034 Arjun** **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).
- 036 Shekh Rabibul** **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).
- 037 Sunil Kumar** **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).
- 038 Prem Kumar Soni** **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).
- 040 Kumari Devi** **The presumption applies to tampering.** Proof of tampering raises the reverse-onus presumption just as a direct tap does.
- 041 Jameed & Anr.** **The presumption operates against each accused.** Once the unauthorised means is proved, each must displace the reverse-onus presumption with evidence of lawful use.
- 050 Kuldeep** **The reverse-onus presumption convicts the silent accused.** No paid bills and no defence evidence leave the compulsory presumption unrebutted (Neeraj Dutt; Hiten P. Dalal; Mukesh Rastogi; Section 106).

ADMISSIBILITY OF INSPECTION VIDEOGRAPHY (SECTION 65B)

- 001 Gaffar Miya** **Section 65B certificate is not indispensable.** Absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered — the objection goes to the mode of proof and is waived if not timely taken (Sonu @ Amar).
- 002 Sattar Miya** **Section 65B certificate is not indispensable.** Absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered (Sonu @ Amar).
- 003 Gaffar Miya** **Section 65B certificate is not indispensable.** Absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered (Sonu @ Amar).
- 006 Mohd. Riyaz** **A 65B certificate, where filed, forecloses the videography challenge.** With the certificate on record (Ex.PW4/A), the bare suggestion of fabrication had nothing to bite on — contrast companion cases resting on the waived-objection rule (Sonu @ Amar).
- 008 Ravinder** **A filed 65B certificate forecloses the videography challenge.** With Ex.PW3/A on record, the fabrication suggestion had nothing to bite on.
- 009 Yasmeen** **A filed 65B certificate forecloses the videography challenge.** With Ex.PW2/B on record, the video's admissibility was not seriously contestable.
- 012 Shehzad & Anr.** **A filed 65B certificate forecloses the videography challenge.** With Ex.PW1/B on record, planting/fabrication suggestions had nothing to bite on.

028 Shehzad **A Section 65B certificate secures the video.** The certified videography proved the manner of abstraction and dispensed with any need for a public witness.

043 Narpal **A defective Section 65B certificate excludes the video.** Interval videography and a pre-printed certificate without device particulars fail the admissibility conditions.

044 Amit Gahlot **A substitute CD needs its own Section 65B certificate.** A certificate tied to an unplayable original does not cover a later substitute prepared by someone else.

047 Munni Devi **Computer-generated records need Section 65B certification.** Uncertified electronic/computer documents are inadmissible.

DEFENCE CROSS-EXAMINATION AS ADMISSION

001 Gaffar Miya **Defence cross-examination can prove the case.** Incriminating suggestions put by defence counsel — here, that the wires ran from the ground-floor meter's input terminal — can themselves establish the factum of inspection and bind the accused (Balu Sudam Khalde).

002 Sattar Miya **Defence cross-examination can prove the case.** Incriminating suggestions put by defence counsel — that the wires ran from the running ground-floor meter's input terminal — can themselves establish the factum of inspection and bind the accused (Balu Sudam Khalde).

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005 Mohd. Riyaz & Anr. **Appearing in the inspection video demands an explanation.** The accused's unexplained presence in the videography — whose genuineness he never disputed — undercut the plea that no inspection took place; the missing 65B certificate did not help absent a timely objection (Sonu @ Amar).

006 Mohd. Riyaz **Mass-raid testimony elicited by the defence proved the inspection.** Answers the defence itself drew out — that the premises were inspected in a mass raid and the load report prepared on observation — bound the accused (Balu Sudam Khalde).

008 Ravinder **'Planted evidence' suggestions need material.** Bare planted-wire suggestions, denied by the witness, cannot dent the presumption of regularity (Ashwani Kumar).

010 Tilak Raj **Cross-examination answers bound the accused.** Defence-elicited answers (no meter; accused's workers present) reinforced the prosecution.

NON-JOINING OF A PUBLIC WITNESS

001 Gaffar Miya **A public witness is not essential.** Non-joining of an independent witness does not vitiate an otherwise trustworthy official inspection without shown enmity (Ashwani Kumar; Sushil Sharma).

002 Sattar Miya **A public witness is not essential.** Non-joining of an independent witness does not vitiate an otherwise trustworthy official inspection (Ashwani Kumar; Sushil Sharma).

- 003 Gaffar Miya** **A public witness is not essential.** Non-joining of an independent witness does not vitiate an otherwise trustworthy official inspection (Ashwani Kumar; Sushil Sharma).
- 004 Momin & Anr.** **A public witness remains unnecessary.** Official inspection testimony, videographed and 65B-certified here, suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 007 Devi Prasan** **A recorded refusal answers the public-witness objection.** Where the inspection report notes locals were asked and refused, non-examination of an independent witness is no infirmity (Sushil Sharma).
- 015 Laxmi Mishra** **A public witness remains unnecessary.** Official inspection testimony, videographed and 65B-certified, suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 016 Shimla** **A public witness is not essential.** Official inspection testimony, videographed and 65B-certified, suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 019 Devanand** **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 020 Bobby Khurana** **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 021 Archana Shukla** **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 022 Tilak Raj** **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 023 Nikhat** **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
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- 025 Devanand** **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).
- 030 Neelam** **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).
- 031 Sukh Chain** **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).
- 033 Saroj Devi** **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).
- 034 Arjun** **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).
- 035 Shakuntala** **Unexamined beneficiaries and public witnesses tell against the prosecution.** No e-rickshaw owner, no public witness and no proof of collection of charges left the operation unattributed (Anoop Joshi; Ramesh Harijan).

036 Shekh Rabibul **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).

037 Sunil Kumar **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).

038 Prem Kumar Soni **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).

040 Kumari Devi **A public witness is not essential.** Official inspection testimony suffices absent shown enmity (Ashwani Kumar; Sushil Sharma).

050 Kuldeep **A public witness is not essential in a populated locality.** Where the public decline to join in a crowded area, the officials' consistent testimony and the presumption of regularity suffice (Ashwani Kumar; Sushil Sharma).

PRESENCE, OCCUPANCY & IDENTITY OF THE USER

003 Gaffar Miya **Mere presence at the raided premises is not culpability.** The visiting married daughter found at the spot — who even falsely called herself a tenant — was dropped u/s 258 Cr.P.C.; liability confined to the person shown to be abstracting and using the electricity.

006 Mohd. Riyaz **A bill in someone else's name is no rebuttal.** The only electricity bill on record stood in the wife's name; under the s.106 onus (Mukesh Rastogi) the accused had to show paid bills for lawful supply to these premises.

007 Devi Prasan **A signed inspection report is powerful proof of presence and user status.** The accused's signature on the report and seizure memo — photographed as he signed — anchored the user finding and reduced the coercion plea to assertion.

007 Devi Prasan **The passer-by defence needs documents, not relatives.** A cousin's testimony backed only by an unattested photocopy rent agreement not proved per law, with no address proof of the accused's own, cannot discharge the shifted onus.

009 Yasmeen **Identification in the videography anchors user status.** PW-3 identified the accused in the 65B-certified video; identity of accused and premises never disputed.

009 Yasmeen **Ownership documents seized in investigation reinforce occupancy.** IO seized the premises' ownership papers, pre-empting a premises-not-mine defence.

011 Altaf **A representative's presence sufficed on the facts.** The person at the spot identified himself as the accused's representative; unchallenged videography tied the accused, as user, to the premises.

013 Gyatri Devi **Occupancy, not title, fixes 'consumer' status.** That the premises stood in the late husband's name did not shield the widow in occupation who drew the supply.

014 Mustak Hussain **A worker's statement can anchor occupancy and theft.** The worker Sameer's statement placed the scrap work and the theft at the accused's premises; the accused never denied Sameer was his worker there.

016 Shimla **Occupancy fixes consumer status.** The widow in occupation answered for the abstraction found there.

017 Atul **Occupancy, not title, fixes 'consumer' status.** That the premises stood in the late father's name did not shield the son in occupation who drew the supply.

028 Shehzad **Presence at inspection fixes identity.** Where the accused is himself present at the videographed inspection of his premises, the recurring “who was the user” defence is unavailable.

030 Neelam **Identification at the videographed inspection fixes the accused.** Presence in the photographs/video, undisputed signatures on the inspection report and appliances in use place the abstraction on the accused; a disconnected earlier connection makes the continued consumption dishonest.

031 Sukh Chain **Identification at the videographed inspection fixes the accused.** Presence in the photographs/video, undisputed signatures on the inspection report and appliances in use place the abstraction on the accused; a disconnected earlier connection makes the continued consumption dishonest.

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038 Prem Kumar Soni **Identification at the videographed inspection fixes the accused.** Presence in the photographs/video, undisputed signatures on the inspection report and appliances in use place the abstraction on the accused; a disconnected earlier connection makes the continued consumption dishonest.

049 Arjun **Resemblance is not identification.** Claiming the masked man “looks like” the accused cannot bridge a self-declared different name.

050 Kuldeep **Identification at the videographed inspection fixes the accused.** Presence in the photographs/video, undisputed signatures on the inspection report and appliances in use place the abstraction on the accused; a disconnected earlier connection makes the continued consumption dishonest.

REGISTERED-CONSUMER LIABILITY & ABETMENT

004 Momin & Anr. **Registered consumers cannot hide behind the actual user.** Section 2(15) makes both user and registered consumer 'consumers'; a registered consumer who knowingly permits theft at her premises is punished as an abettor u/s 150 with the same punishment as the thief (Lokesh Chandela).

005 Mohd. Riyaz & Anr. **Registered consumers cannot hide behind the actual user.** Section 2(15) reaches the non-user registered consumer; knowing permission of theft at her premises is abetment u/s 150 carrying the principal's punishment (Lokesh Chandela).

008 Ravinder **A landlord present at the tap answers for it.** Premises unmetered, landlord found at the spot with the theft running; the tenant's later disappearance did not shift or dilute liability.

048 Anmol **A deceased registered consumer sharpens the identity gap.** With the registered consumer dead, the prosecution had to prove the accused's own status — and could not.

CONCEALED DEVICES & STOPPED METERS

004 Momin & Anr. **A change-over switch is a badge of dishonesty.** A concealed switch letting the occupant flip between metered and stolen supply — meter lying stopped, no Genset to explain it — itself evidences dishonest design.

004 Momin & Anr. **A stopped meter plus running appliances shifts the explanatory burden.** The third proviso presumption operates against user and registered consumer alike; only proof of lawful metered use (paid bills, s.106 onus, Mukesh Rastogi) rebuts it.

005 Mohd. Riyaz & Anr. **A stopped meter with a live load is itself the case to answer.** Where the meter reads stopped and the premises visibly consume power through a tampered service cable, the burden effectively shifts to the occupants to show a lawful source — and silence convicts.

SCOPE OF THE LICENSEE'S WORKS TAPPED

006 Mohd. Riyaz **Unmetered occupation plus a pole tap is the paradigm s.135(1)(a) case.** Where whole floors run with no meter and a cable traces to the licensee's pole, the offence is made out on the inspection evidence itself.

009 Yasmeen **Puncturing a service cable is a clause (a) tap.** Piercing the licensee's service cable to bleed supply is itself the actionable connection.

010 Tilak Raj **Street-light infrastructure counts as the licensee's works.** A tap on the street-light distribution box is as much a s.135(1)(a) connection as a pole hook.

012 Shehzad & Anr. **Puncturing a pole-mounted service cable is a clause (a) tap.** Piercing the licensee's service cable at the pole to bleed supply is itself the actionable connection.

013 Gyatri Devi **Street-light infrastructure is the licensee's works.** A tap on the street-light point is a s.135(1)(a) connection with the licensee's service facilities, no different from a pole hook.

017 Atul **Street-light infrastructure is the licensee's works.** A tap on the street-light point is a s.135(1)(a) connection with the licensee's service facilities, no different from a pole hook.

028 Shehzad **Puncturing the service cable is direct theft.** Drawing supply through a puncture in the licensee's service cable, ahead of the meter, is a clause (a) abstraction — no separate hooked wire is needed.

COMMERCIAL USE & THE SIZE OF THE ASSESSMENT

- 004 Momin & Anr.** **Commercial use aggravated the assessment.** The 2.102 KW load ran a collar-pasting business, producing a theft bill (Rs. 1,82,203) an order of magnitude above comparable domestic cases.
- 008 Ravinder** **Commercial use multiplies the stakes.** 2.435 KW wooden-work load produced a Rs. 1,73,901 assessment at double the commercial tariff (Reg. 63).
- 010 Tilak Raj** **Commercial theft is priced accordingly.** 2.518 KW wire-rolling load produced a Rs. 1,73,506 assessment at double commercial tariff.
- 018 Imran** **Telecom/commercial loads drive the assessment sky-high.** Powering a GSM antenna tower (14.046 KW) produced a Rs. 11,61,828 bill — ~20x a domestic tap — because assessment follows the commercial tariff, doubled under Reg. 63.
- 031 Sukh Chain** **A commercial tap for an eatery is squarely within clause (a).** Running a dhaba on an unmetered direct hook from the LT mains is a dishonest abstraction; the commercial use aggravates rather than explains the draw.

SETTLEMENT OF THE THEFT BILL AS CORROBORATION

- 001 Gaffar Miya** **Settling the theft bill can cut against the accused.** Payment of the civil liability during trial was read not as closure but as conduct corroborating guilt on the criminal charge.
- 002 Sattar Miya** **Settling the theft bill can cut against the accused.** Payment of the civil liability during trial was read as conduct corroborating guilt on the criminal charge.
- 003 Gaffar Miya** **Settling the theft bill can cut against the accused.** Payment of the civil liability during trial was read as conduct corroborating guilt on the criminal charge.
- 004 Momin & Anr.** **Settlement corroborates guilt even if never paid.** Agreeing to settle the theft bill — despite failing to deposit the amount — was read as conduct inconsistent with innocence.
- 005 Mohd. Riyaz & Anr.** **Settlement corroborates guilt even if never paid.** Settling the theft bill while pleading inability to deposit was read as conduct inconsistent with innocence.
- 006 Mohd. Riyaz** **Settlement corroborates guilt even if never paid.** Settling the theft bill while pleading inability to deposit was read as conduct inconsistent with innocence.
- 008 Ravinder** **Settlement plus deposit still corroborates guilt.** Full payment of the settled bill was treated as conduct inconsistent with innocence, not closure.
- 009 Yasmeen** **No settlement was needed for conviction.** Conviction rests wholly on the un rebutted presumption and inspection evidence.
- 011 Altaf** **An NOC after settlement is not immunity.** Payment of the settled bill and an NOC from the licensee closed the civil account only; the s.135 prosecution proceeded to conviction.
- 011 Altaf** **Settlement conduct still corroborates guilt.** Readiness to settle rather than protest a false bill was weighed against the accused.

- 013 Gyatri Devi** **An NOC after settlement is not immunity.** Payment of the settled bill and an NOC from the licensee closed the civil account only; the s.135 prosecution proceeded to conviction.
- 013 Gyatri Devi** **Settlement corroborates guilt.** Readiness to settle rather than protest a false bill was weighed against the accused.
- 014 Mustak Hussain** **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence.
- 016 Shimla** **A reduced, part-paid settlement still corroborates guilt.** Settling the Rs. 51,607 bill for Rs. 26,000 and depositing only Rs. 3,000 was read as conduct inconsistent with innocence, not a compromise neutralising the criminal charge.
- 017 Atul** **An NOC after settlement is not immunity.** Payment of the settled bill and an NOC from the licensee closed the civil account only; the s.135 prosecution proceeded to conviction.
- 017 Atul** **Settlement corroborates guilt.** Readiness to settle rather than protest a false bill was weighed against the accused.
- 018 Imran** **A rooftop tower is not an innocent explanation.** That the load ran a functioning telecom tower confirmed a substantial, sustained abstraction rather than incidental domestic use.
- 018 Imran** **Settlement corroborates guilt.** Settling and depositing the very large theft bill was read as conduct inconsistent with innocence.
- 019 Devanand** **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence.
- 020 Bobby Khurana** **An unsettled bill is no mitigation of the charge.** Unlike the settled-bill cases, here the theft demand was never paid; the Court treated the unpaid, unrebutted assessment as fortifying the prosecution.
- 021 Archana Shukla** **Settlement, deposit and even an NOC are not immunity.** Closing the civil account does not answer the s.135 charge; the settlement is read as conduct corroborating the theft.
- 022 Tilak Raj** **Settlement, deposit and even an NOC are not immunity.** Closing the civil account — paying the settled bill and taking an NOC — does not answer the Section 135 charge; the settlement is read as conduct corroborating the theft.
- 023 Nikhat** **Settlement, deposit and even an NOC are not immunity.** Closing the civil account does not answer the s.135 charge; the settlement is read as conduct corroborating the theft.
- 024 Nikhat** **Settlement, deposit and even an NOC are not immunity.** Closing the civil account — paying the settled bill and taking an NOC — does not answer the Section 135 charge; the settlement is read as conduct corroborating the theft.
- 025 Devanand** **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence, not neutral compromise.
- 028 Shehzad** **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence, not a neutral compromise.

044 Amit Gahlot

An unexamined team head plus contrary neighbour evidence unsettles identity. Where the defence shows the raid may have been elsewhere, the premises themselves are in doubt.

CRIMINAL CONVICTION & CIVIL LIABILITY TOGETHER

007 Devi Prasan

Criminal conviction and civil recovery travel together. The s.135 conviction was coupled with s.154(5) civil liability to be quantified at sentencing.

DELAY & PROCEDURAL INTEGRITY

007 Devi Prasan

Report–testimony variations must be material to matter. 'Distribution box' in the report vs 'pole' in testimony was no contradiction where photographs traced the line from the pole-side box to the premises.

010 Tilak Raj

Delay did not dilute the case. Offence 2017, s.251 notice 2024, judgment 2026 — the documented, videographed inspection held firm.

011 Altaf

Successive IOs are unobjectionable. Two IOs each proving their own documents left no exploitable gap.

ACQUITTAL — IDENTITY OF THE USER NOT PROVED

026 Vinod Kumar

Theft found outside the registered premises must still be tied to the accused. An abstraction in an open/public area is not automatically the registered consumer's; the prosecution must prove his control over the tapping or charging activity.

026 Vinod Kumar

Absence at inspection plus missing operators is fatal to identity. Where the accused is absent and no operator or beneficiary is examined, the “who ran it” question is left open (Krishna Gupta).

027 Smt. Rakhi

Consumer status must be proved, not assumed. Naming a person in the complaint is not proof that she is the consumer; a contrary identity document defeats the assumption (Amit Bansal).

027 Smt. Rakhi

A different Aadhaar address is powerful exculpatory material. The accused's own official record placing her elsewhere raised a reasonable doubt the prosecution could not dispel.

048 Anmol

Proof of tampering is not proof of the tamperer. A confirmed lab finding fixes the act, not the person; identity must be independently proved.

048 Anmol

Mismatched family particulars defeat identity. Where the grandfather named does not match the accused, the link to the premises is broken.

049 Arjun

Elementary identity steps must be taken. Failing to remove the mask or demand identification on video leaves identity unproved.

049 Arjun

A proclaimed co-accused is a weak source of identity. Identification resting on an absconding co-accused cannot supply certainty.

ACQUITTAL — CONTRADICTIONS & FALSE RECITALS

015 Laxmi Mishra **A false name backfires.** Giving inspectors a wrong name ('Geeta'), exposed in investigation, corroborated dishonest intention.

032 Aamer Suhail **A false recital in the inspection report is corrosive.** Recording “no meter” where a meter exists destroys the report’s reliability and the presumption of regularity.

032 Aamer Suhail **Contradictions attract the benefit of the doubt.** Self-contradiction in the prosecution’s documents is enough to acquit (Sadhu Singh).

035 Shakuntala **Two possible views go to the accused.** Where the evidence permits an innocent explanation, the benefit of the doubt is the accused’s (Kali Ram; Mahender Singh Dahiya).

044 Amit Gahlot **A year’s discrepancy in the raid date is fatal.** When the prosecution cannot agree with itself on when the inspection happened, the foundational fact is unproved.

045 Arvind & Anr. **Self-contradiction across witnesses defeats proof.** When PW-1 and PW-3 contradict the complaint and each other on the basic facts of the raid, no reliable version survives.

046 Geeta **A false description of the premises is corrosive to the whole case.** If the theft is placed where no such floor exists, the inspection cannot be trusted on anything else.

046 Geeta **An ‘absurd’ seizure account cannot prove the act.** Testimony the Court itself disbelieves as absurd carries no weight.

ACQUITTAL — AUTHORISATION & MISSING PROOF

015 Laxmi Mishra **An unproved solar-power plea is no rebuttal.** A bare suggestion of solar power, unsupported by evidence, cannot discharge the third-proviso onus — only paid bills / lawful metered use (s.106, Mukesh Rastogi).

035 Shakuntala **Public-place theft demands a complete circumstantial chain.** Where the tap is in a public area, the prosecution must connect it to the accused link by link (Hanumant Govind Nargundkar); a missing link acquits.

035 Shakuntala **Suspicion is not proof.** The gap between ‘may be true’ and ‘must be true’ must be bridged by evidence (Sujit Biswas); mere presence will not do.

042 Sharad Rana & Anr. **A meter-tampering case stands or falls on the lab witnesses.** If the testing officers are not examined and the report is not proved, there is no admissible finding of tampering.

042 Sharad Rana & Anr. **‘Burnt’ is not ‘tampered’.** The licensee must prove tampering; a burnt meter may have many innocent causes (Narinder Aggarwal).

042 Sharad Rana & Anr. **A speaking order must reason, not recite.** Reproducing the lab report without independent reasoning is no speaking order at all.

042 Sharad Rana & Anr. **Unproved authority to complain is by itself a serious gap.** Absent the Board Resolution proving the CEO’s authority to delegate, the very competence of the complaint is in doubt.

043 Narpal **Withholding the technician is fatal in a wiring case.** The one witness who could prove the tap must be examined.

043 Narpal **Unseized cables leave the tap unproved.** Police presence with no seizure undercuts the very existence of the illegal connection.

045 Arvind & Anr. **Withholding the technician deprives the accused of a fair test.** The one witness able to prove the wiring must be produced and cross-examined.

046 Geeta **No seizure and no photograph leave the tap unproved.** Physical proof, readily available with police present, was simply not gathered.

047 Munni Devi **Authority to complain is a foundational fact.** Without proof that the complaining officer was empowered, the prosecution's competence is in doubt from the outset.

048 Anmol **Suspicion cannot replace proof.** However strong the suspicion of tampering, a conviction needs legal proof of the accused's identity as user/owner.

SECTION 126 VS 135 — UNAUTHORISED USE, NOT THEFT

029 Tata Power Delhi Distribution Ltd. **Unauthorised use is not theft.** Diverting a sanctioned domestic connection to a non-domestic use (PG accommodation) is Section 126 unauthorised use — civil and assessment-based — not Section 135 theft.

029 Tata Power Delhi Distribution Ltd. **Section 145 ousts the civil court.** Civil courts have no jurisdiction over matters the assessing/appellate authority is empowered to decide.

029 Tata Power Delhi Distribution Ltd. **A barred complaint is rejected under Order 7 Rule 11(d).** Where the suit is barred by Section 145, rejection of the complaint is the correct course.

039 BSES Rajdhani Power Ltd. **Not every electricity dispute is a theft case.** Assessment and unauthorised-use grievances are civil; only dishonest abstraction is Section 135 theft.

SECTION 138 & METER-TAMPERING THEFT

040 Kumari Devi **Meter-jumping is theft under Section 135.** Causing the meter to under-record consumption is a dishonest abstraction within the meter-tampering limbs of Section 135(1).

040 Kumari Devi **The retained meter is the material proof.** Unlike a hooked wire, the tampered meter itself, retained as case property, evidences the manner of theft.

041 Jameed & Anr. **Section 138 can apply alongside Section 135.** Where the theft is effected by interfering with the licensee's meters or works, Section 138 adds a distinct head of liability to the Section 135 abstraction.

OTHER CASE-SPECIFIC OBSERVATIONS

012 Shehzad & Anr. **Both occupants can be convicted as principals.** Spouses jointly occupying unmetered premises fed by one illegal tap are each a 'consumer' and each convicted u/s 135 — no need to route the second occupant through abetment (s.150).

012 Shehzad & Anr. **Meters for other floors do not help.** Authorised meters for the building's other floors underscored the absence of any meter for the inspected floor.

014 Mustak Hussain **Silence on the advisory notice cuts against the accused.** The advisory notice invited a written objection within four working days; filing none was read as conduct consistent with guilt.

014 Mustak Hussain **Load size does not gate the offence.** A modest 1.501 KW load was still direct theft; the deliberately laid 14-metre cable showed an engineered, dishonest tap.

015 Laxmi Mishra **Obstruction is a circumstance of guilt.** Refusing to open the premises, removing the tapped wires, and giving a false name were read as malafide conduct pointing to involvement, not gaps in the prosecution.

015 Laxmi Mishra **The load can be proved without seizing the wires.** Where the accused spirits away the case property, the load taken physically on her own disclosure plus the videographed proceedings still prove the theft.

015 Laxmi Mishra **Defence questions can admit the inspection.** Asking the videographer about the handycam admitted the factum of videography (Balu Sudam Khalde).

016 Shimla **Mixed shop-and-home use is one consumer's theft.** A single tap feeding a ground-floor shop and a first-floor residence is direct theft, assessed across the mixed load.

018 Imran **The accused's absence at inspection is no shield.** Family members identifying him as owner and user, plus his failure to deny it, fixed him as the consumer.

018 Imran **Partial seizure of the wire is not fatal.** Where part of the tapping wire is out of reach, seizing the accessible segment suffices; seizure is only corroborative, the theft being videographed.

019 Devanand **An owner can be convicted of abetment even where the user has absconded.** The registered consumer/owner who consciously permits an unarrested, untried tenant to draw an unauthorised supply is guilty u/s 135 r/w 150; the principal's absence from the dock does not absolve the abettor.

019 Devanand **'Consumer' under Section 2(15) reaches the owner.** The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

019 Devanand **A meter-bypass with disconnected meters is direct theft.** That four meters stood installed did not help the owner where their outgoing supply was disconnected and the load ran through a service-cable tap.

020 Bobby Khurana **An owner can be convicted of abetment even where the user is never tried.** The registered consumer/owner who consciously permits a tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the death of the principal, abating her case, does not absolve the abettor.

020 Bobby Khurana **"Consumer" under Section 2(15) reaches the owner.** The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

021 Archana Shukla **An owner can be convicted of abetment even where the user has absconded.** The registered consumer/owner who consciously permits an unarrested, untried tenant to draw an unauthorised supply is guilty u/s 135 r/w 150; the principal's absence from the dock does not absolve the abettor.

021 Archana Shukla **'Consumer' under Section 2(15) reaches the owner.** The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

022 Tilak Raj

An owner can be convicted of abetment even where the user has absconded. The registered consumer/owner who consciously permits an (unarrested, untried) tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the principal's absence from the dock does not absolve the abettor.

022 Tilak Raj

“Consumer” under Section 2(15) reaches the owner. The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

023 Nikhat

An owner can be convicted of abetment even where the user has absconded. The registered consumer/owner who consciously permits an unarrested, untried tenant to draw an unauthorised supply is guilty u/s 135 r/w 150; the principal's absence from the dock does not absolve the abettor.

023 Nikhat

'Consumer' under Section 2(15) reaches the owner. The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

023 Nikhat

Third-party obstruction of the videography does not defeat the case. A person at the spot (Farhad) preventing complete videography did not weaken the prosecution; the seizure and consistent testimony independently proved the tap.

024 Nikhat

An owner can be convicted of abetment even where the user has absconded. The registered consumer/owner who consciously permits an (unarrested, untried) tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the principal's absence from the dock does not absolve the abettor.

024 Nikhat

“Consumer” under Section 2(15) reaches the owner. The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

024 Nikhat

Failure to seize the wire, amid resistance, is not fatal. That the illegal wire could not be removed because of resistance at the spot did not weaken the prosecution — the tap was independently established by the videography and the officials' consistent testimony.

025 Devanand

An owner can be convicted of abetment even where the user has absconded. The registered consumer/owner who consciously permits an (unarrested, untried) tenant to draw an unauthorised supply is guilty under Section 135 r/w Section 150; the principal's absence from the dock does not absolve the abettor.

025 Devanand

“Consumer” under Section 2(15) reaches the owner. The owner cannot disown liability for illegal abstraction at the premises merely because a tenant was the user (Lokesh Chandela).

025 Devanand

Dead meters do not answer a service-cable bypass. That four meters stood installed did not help the owner where their outgoing supply was disconnected and the load ran directly through the service cable — the largest assessment among the abetment convictions (over Rs. 4.5 lakh) followed from the connected load.

026 Vinod Kumar

A large assessment is not a substitute for proof of authorship. The size of the load or bill goes to quantum; it cannot fill a gap in proof of who abstracted the electricity.

027 Smt. Rakhi

Abetment falls with the principal offence. No identified user means no theft to abet under Section 150.

029 Tata Power Delhi Distribution Ltd.

Section 127 is the exclusive remedy. An aggrieved consumer must pursue the statutory appeal, not a civil suit (Yogesh Nayyar; B L Kantroo).

030 Neelam

Directly tapping the network is theft under clause (a). A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering

need be shown.

030 Neelam **An irregular search or seizure does not vitiate the trial.** Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

031 Sukh Chain **Directly tapping the network is theft under clause (a).** A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

031 Sukh Chain **An irregular search or seizure does not vitiate the trial.** Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

032 Aamer Suhail **Exterior-only photographs prove nothing.** A visual record that never shows the interior or the alleged tap cannot establish the abstraction.

033 Saroj Devi **Directly tapping the network is theft under clause (a).** A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

033 Saroj Devi **An irregular search or seizure does not vitiate the trial.** Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

034 Arjun **Directly tapping the network is theft under clause (a).** A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

034 Arjun **An irregular search or seizure does not vitiate the trial.** Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

034 Arjun **A disconnected prior connection makes continued use dishonest.** Where the earlier legal connection (here in the father's name) stands disconnected and none is restored, continuing to consume electricity is itself evidence of dishonest abstraction.

036 Shekh Rabibul **Directly tapping the network is theft under clause (a).** A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

036 Shekh Rabibul **An irregular search or seizure does not vitiate the trial.** Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

036 Shekh Rabibul **The 'I only paid a third party' e-rickshaw plea fails without proof.** A bare claim of paying charges to an unnamed operator does not displace the accused's identification with the premises where the tap and charging point were found.

037 Sunil Kumar

Directly tapping the network is theft under clause (a). A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

037 Sunil Kumar

An irregular search or seizure does not vitiate the trial. Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

038 Prem Kumar Soni

Directly tapping the network is theft under clause (a). A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

038 Prem Kumar Soni

An irregular search or seizure does not vitiate the trial. Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

039 BSES Rajdhani Power Ltd.

The consumer's civil remedies are limited by the statutory scheme. Where Section 126 is engaged, Section 145 bars the civil court and Section 127 provides the appeal.

039 BSES Rajdhani Power Ltd.

Comparative value. The case anchors the civil end of the spectrum against which the criminal prosecutions can be read.

041 Jameed & Anr.

Abetment reaches the assisting co-accused. A second person who assists or permits the abstraction abets it under Section 150 and shares the principal's punishment.

041 Jameed & Anr.

Silence and no paid bills convict. Leading no evidence, the accused leave the compulsory presumption unrebutted (Neeraj Dutt; Mukesh Rastogi).

043 Narpal

Dropping the real consumer can sink the case. Where the meter, consumption and bills belong to the dropped accused, the person left in the dock may not be the "consumer" at all (Section 2(15)).

044 Amit Gahlot

A valid subsisting connection tells against theft. A commercial connection held since 2019 — and an order to reinstate the meter — is hard to square with the alleged theft.

045 Arvind & Anr.

The nature of the load cannot be left uncertain. Domestic vs non-domestic goes to the assessment and the offence; an unresolved contradiction is telling.

045 Arvind & Anr.

A live tap must be proved, not assumed. An untested wire and an unshown connection point leave the abstraction itself in doubt.

046 Geeta

Failure to identify the accused is decisive. A witness who cannot identify the accused cannot fix the abstraction on her.

047 Munni Devi

Examining one of four is not enough. A largely unexamined team and a missing videographer leave the inspection unproved.

047 Munni Devi

Procedural defects can be cumulative and decisive. Individually curable lapses, taken together, deny the charge a foundation.

049 Arjun

A certified video proves the act, not necessarily the actor. Where the person recorded is masked and self-names differently, Section 65B admissibility does not translate into proof of identity.

050 Kuldeep

Directly tapping the network is theft under clause (a). A hooked or tapped connection drawing unmetered supply from the licensee's pole, mains or feeder pillar is a direct, artificial abstraction — no meter tampering need be shown.

050 Kuldeep

An irregular search or seizure does not vitiate the trial. Market-available case property, imperfect sealing or a missing duty roster go only to weight, not admissibility (N.M.T Joy Immaculate); absent prejudice the Court acts on the evidence.

050 Kuldeep

A Section 313 admission, with the video, is decisive. Where the accused admits presence and the direct connection in his Section 313 statement and is visible in the certified recording, the identity and factum of theft are established beyond the presumption.

Compilation digest generated from the per-case summaries of Cases 001–050. It collates the courts' own reasoning for cross-referencing and is not a substitute for the full judgments.